QUICK-PDE

End User License Agreement

A Quantum Function by ColibriTD

Version 1.5 — Last updated: November 4th 2026

This End User License Agreement governs access to and use of QUICK-PDE, made available by ColibriTD through the IBM Quantum Functions Catalog. Please read it carefully before requesting a trial or using the Function.

1. Definitions

1.1 In this Agreement, the following capitalised terms have the meanings set out below:

(a) **"Agreement"** means this End User License Agreement, together with any Order Form referencing it.

(b) **"Authorized User"** means an employee or individual contractor of Customer who accesses the Function through Customer's IBM Platform account, solely on Customer's behalf.

(c) **"Customer"** means the legal entity that accepts this Agreement or signs an Order Form, and on whose IBM Platform instance the Function is enabled.

(d) **"Customer Data"** means all data submitted to the Function by or on behalf of Customer, including problem definitions, differential equations, boundary and initial conditions, geometries, physical parameters, meshes and solver settings.

(e) **"Documentation"** means the user guides, API references and tutorials for the Function made available by ColibriTD or published on the IBM Platform.

(f) **"Evaluation License"** means the free, time-limited license granted under Section 3.3.

(g) **"Function"** means QUICK-PDE, ColibriTD's proprietary hybrid quantum-classical solver for differential equations, made available as a Quantum Function through the IBM Platform, including its algorithms, software components, and any updates, upgrades and new versions provided during the Term.

(h) **"IBM"** means International Business Machines Corporation and its affiliates.

(i) **"IBM Platform"** means the IBM Quantum Platform, the Quantum Functions Catalog and the associated IBM cloud infrastructure and quantum processing units through which the Function is executed.

(j) **"Order Form"** means an ordering document or quote, executed by Customer and ColibriTD, specifying the license type, Subscription Term, usage entitlements and fees.

(k) **"Output"** means the results returned to Customer by the Function when processing Customer Data, including solution values, fields and associated metrics.

(l) **"Subscription Term"** means the period of paid access to the Function specified in the Order Form, including any renewals.

(m) **"Usage Data"** means technical and operational data generated by the operation of the Function (such as job counts and identifiers, instance sizes, execution times, qubit counts, error codes and performance metrics). Usage Data excludes Customer Data and Output, in any form, and any data from which Customer Data or Output may be derived.

2. Scope and Acceptance

2.1 This Agreement is entered into between ColibriTD SAS, a company incorporated under French law, registered with the Paris Trade and Companies Register under number 852155571, with its registered office at 91 rue du Faubourg Saint Honoré 75008 Paris ("**ColibriTD**"), and Customer.

2.2 By requesting access to, enabling, or using the Function (including under an Evaluation License), or by signing an Order Form, Customer agrees to be bound by this Agreement. The individual accepting this Agreement represents that they are authorised to bind Customer. If Customer does not agree, it must not use the Function.

2.3 **Relationship with IBM.** The Function is executed on the IBM Platform. Customer's access to and use of the IBM Platform, including the consumption of quantum processing unit time, is governed exclusively by Customer's separate agreements with IBM. IBM is not a party to this Agreement, and ColibriTD is not responsible for the availability, performance, pricing or security of the IBM Platform.

2.4 In the event of a conflict, the following order of precedence applies: (i) the Order Form; (ii) this Agreement; (iii) the Documentation.

3. License Grant

3.1 **Commercial License.** Subject to Customer's compliance with this Agreement and payment of the applicable fees, ColibriTD grants Customer, during the Subscription Term, a non-exclusive, non-transferable, non-sublicensable, worldwide license for its Authorized Users to access and use the Function, solely through the IBM Platform, for Customer's internal business purposes and within the usage entitlements set out in the Order Form.

3.2 **Academic and Research License.** Where the Order Form designates Customer as an academic or non-profit research institution, the license under Section 3.1 is limited to non-commercial research and teaching purposes, and Section 5.4 (Publications) applies.

3.3 **Evaluation License.** Where ColibriTD approves a trial request submitted through the IBM Platform, ColibriTD grants Customer a free, non-exclusive, non-transferable, non-sublicensable license to use the Function for ninety (90) days (or such other period as ColibriTD notifies in writing), solely to evaluate whether to purchase a commercial license. The Evaluation License excludes any production or revenue-generating use. ColibriTD may limit, suspend or terminate an Evaluation License at any time. An Evaluation License includes Free tier support only (Section 10), and Section 11.3 applies. Trials enabled by IBM through the IBM Channel are governed by Section 3.5, and their duration is set by IBM.

3.4 **Reservation of Rights.** All rights not expressly granted in this Agreement are reserved by ColibriTD and its licensors. The Function is licensed, not sold.

3.5 **Access through IBM.** Where IBM enables Customer's access to the Function under IBM's agreement with ColibriTD (the "**IBM Channel**"), ColibriTD grants Customer, for as long as IBM enables such access, a non-exclusive, non-transferable, non-sublicensable license for its Authorized Users to access and use the Function through the IBM Platform for Customer's internal purposes. No Order Form is required and no fees are payable by Customer to ColibriTD for IBM Channel access; any charges for that access are governed solely by Customer's agreements with IBM. Unless IBM designates otherwise in writing, the Function is made available through the IBM Channel as a beta offering, for evaluation, research and development purposes and not for production use, and is provided on an "as is" basis. Sections 3.1, 9, 11.1 and 13 do not apply to IBM Channel access.

4. Restrictions

4.1 Customer shall not, and shall not permit any Authorized User or third party to:

(a) copy, modify, adapt, translate, or create derivative works of the Function or any part of it;

(b) decompile, disassemble, reverse engineer, or otherwise attempt to derive the source code, algorithms, circuit structures, encodings or methods of the Function, including by systematically analysing the quantum circuits it generates, except to the strict extent permitted by Article L.122-6-1 of the French Intellectual Property Code and only after first requesting the relevant information from ColibriTD;

(c) use the Function, its Output or the Documentation to develop, train, benchmark for competitive purposes, or improve a product or service that competes with the Function;

(d) sell, resell, license, sublicense, rent, lease, distribute, or otherwise make the Function available to any third party, including on a service-bureau or time-sharing basis;

(e) circumvent or attempt to circumvent any usage limits, access controls or security measures of the Function or the IBM Platform;

(f) publish or disclose performance or benchmark results of the Function obtained under an Evaluation License without ColibriTD's prior written consent;

(g) use the Function in breach of applicable law, of the IBM Platform terms, or of Section 14 (Export Control and Sanctions).

5. Customer Data and Output

5.1 Ownership. As between the parties, Customer retains all rights, title and interest in and to (a) Customer Data, (b) Customer's pre-existing intellectual property, and (c) the Output.

5.2 No Rights in Customer Data. No license or other right in Customer Data or Output is granted to ColibriTD under this Agreement. Customer Data is processed by the Function only at Customer's direction, for the sole purpose of returning Output to Customer. ColibriTD shall not use Customer Data or Output for any other purpose, including to train, improve or develop the Function or any other product or service. Where Customer chooses to share Customer Data with ColibriTD to obtain support under Section 10, ColibriTD shall use it solely to resolve that request and shall delete it once the request is closed.

5.3 Customer Responsibilities. Customer is solely responsible for the accuracy, quality and legality of Customer Data, and represents that it has all rights necessary to submit Customer Data to the Function.

5.4 Publications. Customer may publish scientific results obtained with the Function, provided that the publication (a) identifies QUICK-PDE by ColibriTD as the solver used, and (b) does not disclose ColibriTD Confidential Information or any information restricted by Section 4.1(b). Academic Customers are encouraged to share a copy of any such publication with ColibriTD thirty (30) days before submission, for the sole purpose of identifying ColibriTD Confidential Information.

6. Intellectual Property, Usage Data and Feedback

6.1 ColibriTD IP. ColibriTD and its licensors retain all rights, title and interest, including all intellectual property rights, in and to the Function, the Documentation, and all underlying algorithms, methods, know-how and technology, together with all improvements, modifications and derivative works thereof, whoever makes them.

6.2 Usage Data. ColibriTD may use Usage Data solely to operate, maintain, secure, support and improve the Function, and to verify compliance with this Agreement and the usage entitlements in the Order Form,

provided that any Usage Data used to improve the Function is aggregated and does not identify Customer. ColibriTD shall not use Customer Data or Output, or any data derived from them, to improve the Function, nor use Usage Data to develop new products or services, and shall not disclose Usage Data to any third party other than IBM, to the extent necessary to operate the Function, or as required by law.

6.3 **Feedback.** If Customer provides suggestions, bug reports or other feedback about the Function, ColibriTD may use it freely and without obligation to Customer.

7. Confidentiality

7.1 "**Confidential Information**" means any non-public information disclosed by one party to the other that is marked as confidential or that a reasonable person would understand to be confidential, including, for ColibriTD, the non-public aspects of the Function and its performance, and, for Customer, Customer Data.

7.2 The receiving party shall use the disclosing party's Confidential Information only to perform this Agreement, protect it with at least reasonable care, and disclose it only to its employees, contractors and advisers who need to know it and are bound by equivalent obligations. These obligations do not apply to information that is or becomes public through no fault of the receiving party, was lawfully known to it without restriction, is independently developed, or must be disclosed by law (subject to prompt notice where lawful).

7.3 These obligations survive for five (5) years after termination of this Agreement, and indefinitely for trade secrets.

8. Data Protection

8.1 The Function is designed to process technical and scientific data and is not intended to process personal data. Customer shall not submit personal data to the Function as part of Customer Data.

8.2 Each party shall comply with Regulation (EU) 2016/679 (GDPR) and the French Data Protection Act with respect to any personal data it processes in connection with this Agreement (such as contact details of Authorized Users). Should ColibriTD process personal data on Customer's behalf, the parties shall enter into a data processing agreement meeting the requirements of Article 28 GDPR.

9. Fees and Payment

9.1 Customer shall pay the fees set out in the Order Form. Unless otherwise stated, fees are expressed in euros, exclusive of VAT and other applicable taxes, and payable within thirty (30) days of the invoice date.

9.2 **IBM Charges.** Fees payable to ColibriTD are separate from, and in addition to, any fees payable to IBM for access to the IBM Platform and quantum processing time consumed by jobs executed through the Function.

9.3 Late payments shall bear interest at the rate provided in Article L.441-10 of the French Commercial Code, plus a fixed indemnity of forty euros (€40) for recovery costs. ColibriTD may suspend access to the Function if any undisputed amount remains unpaid fifteen (15) days after written notice.

10. Support and Updates

10.1 **Support Tiers.** ColibriTD provides support for the Function under one of the three tiers described in the table below. The Free tier applies to Evaluation Licenses and to any Customer that has not subscribed

to a paid tier. The Business or Pro tier applies only where specified in the Order Form, for the duration of the Subscription Term. If ColibriTD identifies that an issue originates from the IBM Platform, Customer will be invited to contact IBM support directly. For IBM Channel access, IBM provides first-level support and is Customer's primary point of contact, ColibriTD provides second- and third-level support to IBM under IBM's agreement with ColibriTD, and the support tiers in this Section 10 do not apply.

Tier	Channel	Coverage Hours	Response Time
Free	Email only	CET Coverage Hours	Best effort. No guaranteed Response Time.
Business	Email only	CET Coverage Hours	72 hours, all priority levels.
Pro	Email only	CET and EST Coverage Hours	48 hours for Priority 1 requests; 72 hours for Priority 2 and 3 requests.

10.2 Coverage Hours. "CET Coverage Hours" means 9:00 to 18:00 Paris time, Monday to Friday, excluding French public holidays. "EST Coverage Hours" means 9:00 to 18:00 New York time, Monday to Friday, excluding U.S. federal holidays. Requests received outside Coverage Hours are deemed received at the start of the next Coverage Hours period.

10.3 Response Time. "Response Time" means the time between ColibriTD's receipt of a complete support request and ColibriTD's first substantive response by a qualified member of its team (an initial assessment, a request for information, or a solution), excluding automated acknowledgements. Response Times are counted in hours on Business Days only, weekends and public holidays excluded. Response Time is not a resolution time.

10.4 Priority Levels. Customer assigns a priority to each request, which ColibriTD may reasonably reclassify with notice to Customer:

(a) **Priority 1 (Critical):** the Function is unavailable or returns systematically erroneous Output, preventing Customer from using it, with no workaround available;

(b) **Priority 2 (Major):** a significant feature of the Function is degraded or impaired, but a workaround exists or use can continue in a limited way;

(c) **Priority 3 (Minor):** a minor defect, a documentation issue, a usage question or a feature request.

10.5 How to Request Support. Support requests must be sent by email to quantum-function-support@colibritd.com by an Authorized User and should include the IBM Platform instance, the relevant job IDs, a description of the issue, the expected and observed behaviour, and any steps needed to reproduce it. The Response Time runs from receipt of a request containing this information.

10.6 Exclusions. Support does not cover: (a) availability, queue times, calibration or performance of the IBM Platform and its quantum processing units, for which Customer must contact IBM (ColibriTD will reasonably assist in identifying whether an issue originates from the IBM Platform); (b) Customer's own code, environment or integrations; (c) use of the Function in breach of this Agreement or the Documentation; or (d) consulting services such as problem formulation, model design, benchmarking or custom development, which may be provided under a separate services agreement.

10.7 Nature of Commitment. Response Times are commitments of means (obligations de moyens). Failure to meet a Response Time does not by itself constitute a material breach of this Agreement, unless it recurs three (3) or more times for Priority 1 requests within any period of three (3) consecutive months.

10.8 Updates. ColibriTD may update the Function from time to time, including to adapt it to changes in the IBM Platform. ColibriTD will not materially reduce the core functionality of the Function during a paid Subscription Term without giving Customer reasonable prior notice.

11. Warranties and Disclaimers

11.1 Limited Warranty. During a paid Subscription Term, ColibriTD warrants that the Function will perform materially in accordance with the Documentation. Customer's exclusive remedy for breach of this warranty is for ColibriTD to use commercially reasonable efforts to correct the non-conformity or, failing that, for either party to terminate the affected license and for ColibriTD to refund the prepaid fees for the unexpired portion of the Subscription Term.

11.2 Nature of Quantum Computation. Customer acknowledges that quantum computation is inherently probabilistic and subject to hardware noise, and that the Function relies on the IBM Platform, which ColibriTD does not control. Output is an approximate numerical solution and may contain errors or deviate from exact or classical reference solutions. The Function is not designed or certified for use as the sole basis for safety-critical decisions, including the design, certification or operation of aircraft, nuclear installations, medical devices, or other systems whose failure could cause death, personal injury or significant physical or environmental damage. Customer is solely responsible for independently validating Output before relying on it.

11.3 Disclaimer. Except as expressly provided in Section 11.1, and to the maximum extent permitted by law, the Function is provided "as is" and "as available", and ColibriTD disclaims all other warranties, express or implied, including warranties of fitness for a particular purpose, accuracy, and uninterrupted or error-free operation. The Function is provided under an Evaluation License without any warranty.

12. Limitation of Liability

12.1 Neither party shall be liable for any indirect or consequential loss, or for any loss of profit, revenue, business, goodwill or data, arising out of or in connection with this Agreement.

12.2 Each party's total aggregate liability arising out of or in connection with this Agreement shall not exceed the total fees paid or payable by Customer to ColibriTD under this Agreement in the twelve (12) months preceding the event giving rise to the claim. Under an Evaluation License or for IBM Channel access, ColibriTD's total liability shall not exceed five hundred euros (€500).

12.3 The limitations in this Section 12 do not apply to (a) a party's gross negligence (faute lourde) or wilful misconduct (faute dolosive), (b) death or personal injury caused by negligence, (c) Customer's breach of Section 4, (d) Customer's payment obligations, or (e) any liability that cannot be limited under applicable law.

12.4 The parties acknowledge that the fees reflect the allocation of risk set out in this Section 12, which constitutes an essential element of the bargain between them.

13. Intellectual Property Indemnity

13.1 ColibriTD shall defend Customer against any third-party claim that the Function, as provided by ColibriTD and used in accordance with this Agreement during a paid Subscription Term, infringes that third party's intellectual property rights, and shall pay the damages finally awarded or agreed in settlement, provided that Customer promptly notifies ColibriTD, gives ColibriTD sole control of the defence and settlement, and provides reasonable assistance.

13.2 If such a claim arises or is likely, ColibriTD may, at its option, procure the right for Customer to continue using the Function, modify it to be non-infringing, or terminate the affected license and refund the prepaid fees for the unexpired portion of the Subscription Term.

13.3 ColibriTD has no obligation for claims arising from Customer Data, the IBM Platform, combinations with items not supplied by ColibriTD, modifications not made by ColibriTD, or use in breach of this Agreement. This Section 13 states ColibriTD's entire liability for intellectual property infringement.

14. Export Control and Sanctions

14.1 Customer shall comply with all applicable export control and sanctions laws, including Regulation (EU) 2021/821 and, where applicable, United States export regulations. Customer represents that it is not located in, or owned or controlled by a person located in, a country or territory subject to comprehensive sanctions, and is not listed on any applicable restricted-party list. Customer shall not use the Function for any military end use or for the development of weapons of mass destruction.

15. Term and Termination

15.1 This Agreement takes effect on the earlier of Customer's first use of the Function or the effective date of the Order Form, and continues until the expiry of the Evaluation License or Subscription Term, as applicable, or, for IBM Channel access, until IBM ceases to enable such access. Unless otherwise stated in the Order Form, Subscription Terms renew automatically for successive periods of twelve (12) months unless either party gives at least sixty (60) days' written notice of non-renewal.

15.2 Either party may terminate this Agreement by written notice if the other party materially breaches it and fails to cure the breach within thirty (30) days of receiving notice, or immediately if the other party becomes subject to insolvency proceedings, to the extent permitted by law.

15.3 This Agreement terminates automatically, without liability for ColibriTD, if the Function ceases to be available on the IBM Platform or if IBM terminates Customer's access to the IBM Platform, in which case ColibriTD shall refund any prepaid fees for the unexpired portion of the Subscription Term, unless the unavailability results from Customer's breach.

15.4 Upon termination or expiry, all licenses granted to Customer end and Customer shall cease using the Function. Customer retains the Output generated before termination. Sections 4, 5.1, 6, 7, 11.2, 11.3, 12, 16 and any accrued payment obligations survive.

16. General Provisions

16.1 **Governing Law and Jurisdiction.** This Agreement is governed by French law, excluding its conflict-of-law rules and the United Nations Convention on Contracts for the International Sale of Goods. Any dispute arising out of or in connection with this Agreement shall be submitted to the exclusive jurisdiction of the competent courts of Paris, France, after the parties have attempted in good faith to settle it amicably for thirty (30) days.

16.2 **Assignment.** Customer may not assign or transfer this Agreement without ColibriTD's prior written consent. ColibriTD may assign this Agreement to an affiliate or to a successor in connection with a merger, acquisition or sale of all or substantially all of its relevant assets.

16.3 **Force Majeure.** Neither party is liable for failure or delay in performance caused by an event of force majeure within the meaning of Article 1218 of the French Civil Code, including unavailability or failure of the IBM Platform.

16.4 Changes. ColibriTD may amend this Agreement by giving thirty (30) days' notice. Amendments apply to paid Subscription Terms only from their next renewal, unless Customer agrees otherwise.

16.5 Notices. Notices must be in writing and sent by email with acknowledgement of receipt or by registered letter to the addresses in the Order Form or, for ColibriTD, to legal@colibritd.com.

16.6 Entire Agreement. This Agreement constitutes the entire agreement between the parties regarding the Function and supersedes all prior agreements and understandings on that subject. Any purchase order terms issued by Customer are excluded.

16.7 Severability and Waiver. If any provision is held invalid, the remaining provisions remain in force and the invalid provision shall be replaced by a valid one of closest effect. Failure to enforce a provision is not a waiver.

16.8 Language. This Agreement is drafted in English. If translated, the English version prevails.

16.9 Publicity. Neither party may use the other's name or logo in marketing materials without prior written consent.